



# JUDICIAL CONSIDERATIONS BEFORE ASKING ABOUT A PARTY'S IMMIGRATION STATUS

## OVERVIEW

Judicial inquiries about a specific defendant's nationality, manner of entry to the U.S. - or anything related to their immigration status:

- May violate a party's 5<sup>th</sup> amendment right against self-incrimination (because in certain circumstances, confirming any information relating to immigration matters could potentially involve an admission to a federal offense);
- Give the appearance that the court believes such information is relevant to the decisions it intends to make in the case. A court may generally not base a decision on account of a defendant's membership in a suspect classification (such as national origin or alienage);
- Can improperly intimidate a party from exercising their constitutional rights and taint all subsequent proceedings.

IF in fact the accused is not a U.S. citizen, it is the duty of defense counsel to ascertain their client's exact immigration status and get the proper immigration advice under the 6<sup>th</sup> amendment. The judge cannot (and must not) attempt to interfere with counsel's duties under the 6<sup>th</sup> Amendment;

The judge's duty - for example, under *People v Peque*, 22 NY3d 168 [2013] or N.Y.C.P.L. §220.50(7) - is only to warn **all** defendants that **if** they are a non-citizen, there could be immigration consequences, and admonish the accused to seek advice on that topic from their attorney if appropriate. If judges do not warn **all** defendants, they can easily be accused of treating some defendants differently than others, on account of a suspect classification, such as race or national origin.

Nobody in the courtroom is an immigration lawyer. As such, making any statements on the record about immigration matters invites being reversed on appeal - as those conclusions are likely to be incomplete at best and wholly inaccurate at worst.

## AUTHORITIES & CASELAW

### I. NY CASELAW CONFIRMS JUDGES SHOULD NOT INQUIRE ABOUT IMMIGRATION STATUS: JUDGES SHOULD INSTEAD WARN ALL PARTIES

In *People v. Ulanov*, 188 A.D.3d 1271, 1272–73, 132 N.Y.S.3d 812 (2020), the 2<sup>nd</sup> Department reiterated that **judges should not ask about immigration status** then act upon the defendant's response – but should instead only provide warnings to **all** defendants appearing before them:

"As we explained in *People v. Williams*, **"a trial court should not ask a defendant whether he or she is a United States citizen** and decide whether to advise the defendant of the plea's deportation consequence based on the defendant's answer. Instead, a trial court should advise all defendants pleading guilty to felonies that, if they are not United States citizens, their felony guilty plea may expose them to deportation" (*People v. Williams*, 178 A.D.3d at 1096, 115 N.Y.S.3d 401; see *People v. Palmer*, 159 A.D.3d at 121, 69 N.Y.S.3d 638; see also *People v. Peque*, 22 N.Y.3d at 196, 980 N.Y.S.2d 280, 3 N.E.3d 617)." (emphasis added) *Id.* at 813.

### II. JUDICIAL QUESTIONS ABOUT IMMIGRATION STATUS CAN VIOLATE THE 5<sup>TH</sup> AMENDMENT RIGHT AGAINST SELF-INCRIMINATION

An individual's right under the 5<sup>th</sup> Amendment to avoid self-incrimination applies "to any official questions put to him [or her] in any other proceeding, civil or criminal, formal or informal, where the answers might incriminate him [or her] in future criminal proceedings." *Lefkowitz v. Turley*, 414 U.S. 70, 77 (1973)

Statements about immigration status & history made on the record in criminal court, either orally or in writing, including on plea forms, could be used as evidence in support of other criminal charges for offenses in which immigration status is an element, such as the federal crimes of illegal entry and illegal reentry following deportation, 8 U.S.C. §§ 1325, 1326, respectively. Thus, requiring defendants to disclose their citizenship/immigration status risks compelling individuals to incriminate themselves.

### III. JUDICIAL QUESTIONS ABOUT IMMIGRATION STATUS CAN VIOLATE THE 5<sup>TH</sup> AMENDMENT RIGHT TO DUE PROCESS

Unless immigration status is explicitly relevant to a material issue in the case, judges may not seek its disclosure because such inquiry may have an *in terrorem* effect upon a defendant, who may be intimidated and inhibited from pursuing his or her legal rights. See *Campos v. Lemay*,

2007 U.S. Dist. LEXIS 33877, 24-25 (S.D.N.Y. 2007) (recognizing that danger of intimidation from inquiring into defendant's legal status during proceedings could affect defendant's ability to vindicate his or her legal rights). Other courts have similarly recognized the risk related to questioning immigration status on the record. *See, e.g. Flores v. Amigon*, 233 F. Supp. 2d 462, 464 (E.D.N.Y. 2002); *Topo v. Dhir*, 210 F.R.D. 76, 78 (S.D.N.Y. 2002); *Zeng Liu v. Donna Karan Int'l, Inc.*, 207 F. Supp. 2d 191, 193 (S.D.N.Y. 2002)

#### **IV. JUDICIAL QUESTIONS ABOUT IMMIGRATION STATUS CAN VIOLATE JUDGE'S ETHICAL OBLIGATIONS**

Among other requirements, Judges are obliged to (1) Uphold the judiciary's integrity and independence (see 22 NYCRR 100.1), (2) Avoid impropriety and its appearance in all their activities (see 22 NYCRR 100.2), and (3) Act at all times in a manner that promotes public confidence in the integrity and impartiality of the judiciary (see 22 NYCRR 100.2[A]). As discussed in NYS Advisory Committee on Judicial Ethics Opinion 10-196, if a judge asks a specific defendant about their immigration status:

- It can *appear* as though they are attempting to perform the role of civil immigration enforcement - which has no bearing on state criminal proceedings (and therefore makes the judge assume the role of a civil immigration officer)
- It can *appear* that they intend to use that information to treat non-citizens differently than citizens (why else would a judge ask the question unless they intend to use it in some way?)

As a result, although asking may be technically permissible *in some very limited circumstances*, immigration status is almost always irrelevant to a local criminal proceeding - and opens up a judge to claims of violations of the code of judicial conduct.

#### **V. A JUDGE MAY – AND SHOULD – TAKE INTO ACCOUNT THE DIFFERING COLLATERAL CONSEQUENCES OF A CASE IF THE PARTY BRINGS IT TO THE COURT'S ATTENTION**

Should a party bring their immigration status to a Court's attention, there is no prohibition in a Court considering that information - indeed the opposite is true. In *U.S. v. Thavaraja*, 740 F.3d 253 (2d Cir. 2014) the Second Circuit found that the **additional**, negative impact of deportation - as compared to a similarly-situated U.S. citizen - is perfectly proper. ("In determining what sentence is 'sufficient, but not greater than necessary,' to serve the needs of justice, 18 U.S.C. § 3553(a) [i.e. sentencing], a district court may take into account the uncertainties presented by the prospect of removal proceedings and the impact deportation will have on the defendant and his family.") *id* at 262-63.